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|    |                                                                                           | <b>Moving party to give notice.</b>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
| 3. | <b>30-2024-01448151</b><br><br><b>Conley vs. Kang</b>                                     | <p style="text-align: center;"><b>1. Motion to Be Relieved as Counsel of Record</b></p> <p>The unopposed motion of attorney Jessica Williams of Sweet James LLP to be relieved as counsel for Plaintiff DaVon James Conley is <b>GRANTED</b>.</p> <p>Service on the client and on all other parties who have appeared in the case was proper and all required forms containing the requisite information were filed pursuant to California Rules of Court, rule 3.1362.</p> <p>The order will take effect once moving attorney files proof of service of the signed order (MC-053) on the client.</p> <p><b>Moving attorney to give notice.</b></p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
| 5. | <b>30-2023-01313333</b><br><br><b>Cortez vs. Ashe</b>                                     | <p style="text-align: center;"> <b>1. Motion to Be Relieved as Counsel of Record</b><br/> <b>2. Motion to Be Relieved as Counsel of Record</b><br/> <b>3. Motion to Be Relieved as Counsel of Record</b> </p> <p>The unopposed motions of attorney Donald Hartunian as counsel for Plaintiffs Mario Cortez, Maria Cortez, and Guadalupe Cortez are <b>GRANTED</b>.</p> <p>Service on the clients and on all other parties who have appeared in the case was proper and all required forms containing the requisite information were filed pursuant to California Rules of Court, rule 3.1362.</p> <p>The order will take effect once moving attorney files proof of service of the signed order (MC-053) on the client.</p> <p><b>Moving attorney to give notice.</b></p>                                                                                                                                                                                                                                                                                                                                                                                                                                                   |
| 6. | <b>30-2023-01350570</b><br><br><b>Loan Servicer LLC</b><br><b>vs. Harmony Escrow, Inc</b> | <p style="text-align: center;"> <b>1. Motion for Leave to File Amended Cross-Complaint</b><br/> <b>2. Status Conference re: Settlement</b> </p> <p>Defendant/cross-complainant Harmony Escrow, Inc. (“Defendant”) moves for an order granting it leave to amend its Cross-Complaint and Answer to the First Amended Complaint, and deeming the proposed pleadings filed as of the date of the granting of this Motion.</p> <p>“The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading.” (Code Civ. Proc., § 473(a)(1).) “If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion.” (<i>Morgan v. Superior Court</i> (1959) 172 Cal.App.2d 527, 530.)</p> <p>Here, Defendant’s proposed amendments do not add any new parties or theories of liability to this litigation. Defendant learned about the facts giving rise to the amendments in early 2025 but did not</p> |

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|    |                                                                                         | <p>file this Motion until after the parties conducted a mediation in September 2025 and it became apparent that the parties would not stipulate to the amendments. Despite the delay, there is no indication that any party will be prejudiced by the amendments. Thus, the Motion is <b>GRANTED</b>.</p> <p>Defendant requests that the Court order the Amended Cross-Complaint and Amended Answer attached to the supporting declaration deemed filed as of the date of the order granting leave to amend. The request is denied. <b>Defendant is ordered to file and serve the Amended Cross-Complaint and Amended Answer within 10 days of the date of this order.</b></p> <p><b>Moving party to give notice.</b></p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |
| 7. | <p><b>30-2025-01491450</b></p> <p><b>Stahl vs. Volkswagen Group of America, Inc</b></p> | <p style="text-align: center;"><b>1. Motion to Compel Production</b></p> <p>Defendant, Volkswagen Group of America, Inc. (“VWGOA”), moves for an order compelling Plaintiff, Kathleen A. Stahl (“Plaintiff”), to provide verified responses to Inspection Demand, Set One, and for an order for monetary sanctions in the amount of \$1,837.50 against Plaintiff and her counsel of record. The motion is <b>DENIED, as MOOT</b>.</p> <p>If a party to whom requests for production of documents were directed fails to serve a timely response, the propounding party may move for an order compelling responses, and for monetary sanctions. (Code Civ. Proc. §2031.300(a)-(b).) The motion to compel may be heard even if untimely responses are served after the motion is filed. (<i>Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants</i> (2007) 148 Cal.App.4th 390, 408 (“<i>Sinaiko</i>”).) By operation of law, if a party fails to serve a timely response to requests for production, all objections that could have been asserted are waived, including any right to exercise the option to produce writings under Section 2030.230, as well as one based on privilege or on the protection for work product. (Code Civ. Proc. § 2031.300(a); <i>Sinaiko, supra</i>, 148 Cal.App.4th at p. 408; <i>Leach v. Superior Court</i> (1980) 111 Cal.App.3d 902, 906.)</p> <p>Here, on January 22, 2026, VWGOA served its Inspection Demand, Set One on Plaintiff. (Declaration of Lindsey M. Espinosa, ¶ 3, Ex. A.) The deadline to respond was extended to March 25, 2026. (<i>Id.</i>, ¶ 4.) VWGOA’s counsel sent a meet and confer email on April 14, 2026. (<i>Id.</i>, ¶ 6.) As of the time of the filing of the motion, Plaintiff failed to provide any substantive, verified responses to VWGOA’s Inspection Demand, Set One, and failed to respond to the meet and confer email. (<i>Id.</i>, ¶¶ 5, 6.)</p> <p>The opposition provides that on June 24, 2026, Plaintiff served “Further Responses” to Defendant’s Requests for Production, Set One, with verifications served on June 25, 2026. (Declaration of Paul Peterson, ¶ 3.) The reply does not dispute that responses to the subject Inspection Demand, Set One, have been served. Although VWGOA argues in reply that the responses are not Code-compliant and/or are deficient, there is insufficient information to evaluate the responses that were served. Based on the foregoing, VWGOA’s motion to compel responses to Inspection Demand, Set One, is <b>DENIED as MOOT</b>.</p> <p>As to <u>monetary sanctions</u>, Code of Civil Procedure section 2031.300 provides that “the court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to a demand for inspection, copying, testing, or sampling, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc. § 2031.300(c).)</p> |